



P.O BOX 445 THE VILLAGE MARKET NAIROBI KENYA Tel: 0722 201240/ 0734 201240 E-MAIL: [info@voiwildlifelodge.com](mailto:info@voiwildlifelodge.com) WEBSITE: <http://www.voiwildlifelodge.com>

## **Man Eaters Lodge Ltd [hereinafter called MEL] Terms & Conditions** (All General Terms & Conditions of MEL Apply)

### **1. Jurisdiction**

This Agreement and its interpretation shall be subject to the laws of Kenya.

### **2. Government Taxes**

All rates quoted include VAT, Service Charge & Hotel Training Levy where applicable. Should the Government increase, decrease or introduce new taxes, VWL reserves the right to renegotiate the rates of this Agreement accordingly.

### **3. Exchange Rates**

Should the exchange rate of the currency of this contract (USD) to the Euro and Kenya Shilling change considerably, VWL reserves the right to renegotiate the rates, an addition of 10% of this Agreement accordingly.

### **4. Group Bookings**

4.1 Group bookings, scheduled tour series/incentive groups, block bookings, are to be re-confirmed (in writing) by the Agent not less than 15 days prior to the arrival date at VWL and the written reconfirmation notice should be accompanied by (i) a confirmation voucher (physical amendments by drivers etc will not be acceptable), & (ii) the rooming list. Failure to do so will render a booking void and VWL will have the right to release rooms without notice to the Agent after such period (i.e. 15 days prior to date of booking rooms will be released).

4.2 Should VWL receive a second enquiry where another group is prepared to make a firm commitment for the space prior to the Agent's acceptance/Confirmation Voucher, VWL reserves the right to contact the Agent for a signed confirmation voucher within 2 days & or demand a minimum 25% deposit in order to secure the agents booking. In the event the deposit is demanded, this must be paid within 5 working days of such demand being made in writing.

4.3 For groups of 20 pax plus a non-refundable deposit must be paid to VWL of 25% prior to confirmation & at least 35 days prior to arrival date at VWL in order to secure the rooms.

4.4 If, for any reason, and unless otherwise confirmed in writing by VWL, accommodation is not secured by the means outlined above; VWL will have the right to sell/release these rooms with immediate effect.

### **5. Cancellations and No-Shows**

Reservations that are cancelled, reduced in length or stay or reduced in numbers (hereinafter collectively called Cancellation) are subject to the following cancellation and No-show Fees (cancellations must be confirmed in writing by VWL Central Reservations Office in Nairobi and as maybe advised from time to time by VWL):

5.1 Cancellation between 30-15 days: 15%

5.2 Cancellations between 14-3 days: 33%

5.3 Cancellation less than 2 days (including no-shows): 100%

5.4 Please note: For groups that have paid a non-refundable deposit, the cancellation charges above will apply to the remaining balance only.

5.5 All no shows will result in a cancellation of all complimentaries granted, and no credit note shall be issued.

### **6. Early Departure Fees**

Should an individual or group depart earlier than the confirmed departure date, a fee of 100% of the group/individual/contract rate will apply for each night thereafter of the confirmed booking.

## **7. Payment**

7.1 Payment Terms - Full payment is required at least 7 days prior to arrival at VWL by either cash or cheque (please note that cheques should be remitted at least 5 working days prior to arrival date. Should a cheque be returned by the bank for any reason, VWL will require cash or a banker's cheque plus a returned cheque fee of 5% within 72 hours.

7.2 Default - Any default on payment to VWL may result in the clients being refused admittance to VWL until payment is received. Consistent default will be cause for termination of this agreement.

7.3 Collection fees - All related costs incurred by VWL in the collection of unpaid invoices and/or returned cheques will have to be refunded to VWL immediately. Failure to replace returned cheques may constitute a default of this agreement.

7.4 Payment location - All payments for accommodation must be received by email [reservations@voiwildlifelodge.com](mailto:reservations@voiwildlifelodge.com) or [info@voiwildlifelodge.com](mailto:info@voiwildlifelodge.com)

## **8. Check-in/Check-out**

Rooms are available for new arrivals from 2:00 pm on the scheduled date of arrival. Rooms should be vacated by 10:00 am on the scheduled date of departure; late departure times may be considered subject to anticipated arrivals. (Please note: All guests must settle their accounts for extras in full by either cash [Kenyan shillings or US Dollars] or credit card [Visa or MasterCard only] on check-out.) Accommodation will be allocated on a first come, first serve basis. If preferred accommodation is not available, a similar standard of accommodation will be allocated where possible. VWL does not accept liability for any omissions or errors and reserves the right at any time to change information published on its marketing collateral (e.g. website, brochures, online platforms etc).

Guest Property/Conduct - All guests' property etc. is the sole responsibility of the guest, unless placed in the hotel safe and the appropriate fee paid. Guest's vehicles including contents are left on the hotel site at the vehicle owner's sole responsibility. Anti-social behaviour will not be tolerated and persons involved will be asked to leave. If there is anything that a guest is dissatisfied with relating to service or product at VWL, it is advised that the guest/s inform the General Manager immediately so that the matter is dealt with/resolved accordingly. Members of staff are unable to authorise credit or refunds.

Damages - Any damages to the hotel property by your guests will be charged for in full, for the cost of cleaning, repair and/or replacing, along with any lost revenue of rooms awaiting attention. This will be the liability of the Agent, who will be responsible for collecting payment, if necessary from their guest/s.

**Valuables**- Any valuables left at the property are the guest's sole responsibility. Neither the lodge nor the staff can be held responsible for any loss or damage of personal property

Please note: Children are at all times to be supervised by their parents.

## **9. Complimentaries**

### **9.1 Complimentaries & Familiarisation Trips**

Complimentaries will be considered and or accommodated in the low season only, subject to the discretion of Management (complimentaries will not be permitted on public holidays, should be requested in writing officially by manager/director of tour firm).

### **9.2 Complimentary authorisation**

All complimentaries shall be authorised by the directors at head office alone, and one shall have to send the request directly to them in writing i.e. over email of voucher copy.

## **10. Force Majeur Suspension Clause**

The obligations of VWL under this agreement shall be suspended while they are prevented or hindered by force majeure, including but not limited to strike, lock outs, labour and civil disturbances, acts of God, unavoidable accidents, threats of war, pandemics, terrorism, industrial dispute, natural or nuclear disaster, laws, rules, regulations or orders of any Government or any National Municipal or other Government Agency, whether domestic or foreign, wars or other matters beyond the reasonable control of VWL.

## **11. Generally**

A duplicate of these Terms and Conditions is enclosed/attached. Would you please sign one copy by way of acceptance and then send back to us.

We hereby agree to the attached Rates & above Terms and Conditions:

Tour Agent:

\_\_\_\_\_  
Name:

\_\_\_\_\_  
Signature:

\_\_\_\_\_  
Designation:

\_\_\_\_\_  
Date:

\_\_\_\_\_/\_\_\_\_\_/\_\_\_\_\_  
Company Stamp: